

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (this "Agreement") is entered into as of the Effective Date by and between the parties identified on the signature page (each, a "Party" and together, the "Parties").

1. Term. This Agreement shall remain in effect for a period of two (2) years from the Effective Date. The confidentiality obligations set forth herein shall survive termination for a period of three (3) years.
3. Obligations of the Receiving Party. The Receiving Party shall use its best efforts to maintain the confidentiality of all Confidential Information disclosed to it under this Agreement and shall not disclose such information to any third party without the prior written consent of the Disclosing Party.
4. Return of Materials. Upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession and shall certify such return or destruction in writing.
5. Governing Law. This Agreement shall be governed by the laws of the State of Delaware, without regard to its conflict of laws principles.
6. Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous communications, understandings, and agreements, whether oral or written.
7. Injunctive Relief. The Parties acknowledge that monetary damages may be inadequate to remedy a breach of this Agreement, and that the non-breaching Party shall be entitled to seek injunctive relief and other equitable remedies.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PARTY A SIGNATURE: _____

PARTY B SIGNATURE: _____